NO. 22-_____

IN THE
SUPREME COURT OF GEORGIA

DEMOCRATIC PARTY OF GEORGIA, INC., DSCC, and WARNOCK FOR GEORGIA,

Plaintiffs-Appellees,

v.

THE STATE OF GEORGIA,

Defendant-Appellant.

) CASE NO. A230012

EMERGENCY PETITION FOR WRIT OF CERTIORARI AND EMERGENCY MOTION TO STAY THE SUPERIOR COURT'S DECLARATORY AND INJUNCTIVE RELIEF

by Intervenors Georgia Republican Party, Inc., National Republican Senatorial Committee, and Republican National Committee

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R. Thomas Warburton (218175)
Thomas L. Oliver III (745597)
Bradley Arant Boult Cummings LLP
1819 Fifth Avenue North,
Birmingham, AL 35203-2119
Telephone: (205) 521-8000
toliver@bradley.com

Judson H. Turner (719485)
Mark D. Johnson (395041)
Mark M. Middleton (504907)
Robert L. Fortson (142684)
Amber M. Carter (631649)
Gilbert Harrell Sumerford & Martin, P.C.
777 Gloucester St., Suite 200,
Brunswick, GA 31520
Telephone: (912) 265-6700
acarter@ghsmalw.com

ATTORNEYS FOR PETITIONERS

QUESTIONS PRESENTED

1. Did the court of appeals err in refusing to stay the superior court's declaration that O.C.G.A. § 21-2-385(d)(1) permits voting on Saturday, November 26th, immediately after the Thanksgiving holiday on Thursday and the state holiday on Friday, and injunction prohibiting the State from enforcing Georgia's election laws as written?

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Introduction

Intervenors Georgia Republican Party, Inc., National Republican Senatorial Committee ("NRSC"), and Republican National Committee ("RNC") (collectively, "Intervenors") petition this Court to issue a writ of certiorari to review the court of appeals' order denying Intervenors' motion for stay, see id. R. 40. In addition, Intervenors move for an emergency stay of the superior court's order pending disposition of this petition. Intervenors are proceeding with all possible speed to resolve this time-sensitive appeal before illegal advance voting this Saturday moots this petition.

On the eve of counties noticing advance voting dates for the Georgia U.S. Senate runoff election, a Fulton County superior court judge overruled the State of Georgia's non-partisan reading of O.C.G.A. § 21-2-385(d)(1) and accompanying guidance in Georgia's November 12, 2022 Official Election Bulletin (the "Bulletin"). The court's contorted textual interpretation permits advance voting on Saturday, November 26. The order ensures a lack of uniformity among Georgia's 159 counties, with only a handful (i.e., Fulton, DeKalb, Cobb, Chatham, Muscogee, Clarke, Clayton, Gwinnett, Newton, and Rockdale) noticing their intent to hold advance voting on November 26.[1] The injunction permitting rather than mandating counties to open advance voting locations on November 26 cannot be reconciled with the text of O.C.G.A. § 21-2-385(d)(1), which specifies Saturday dates that "shall" have advance voting.

This Court recognizes an "underlying policy" that courts should be wary of the timing of court orders in election-related cases. *Jordan v. Cook*, 277 Ga. 155, 156 (2003). That policy reflects "a bedrock tenet of election law: When an election is close at hand, the rules of the road must be clear and settled." *Merrill v. Milligan*, 142 S.Ct. 879, 880–81 (2022) (Kavanaugh, J., concurring in grant of applications for stays). For that reason, the U.S. Supreme Court

[1]December 6 Runoff Advance Polling Location Schedule, Ga. Sec. of State (Nov. 19, 2022). These ten counties accounted for more than half of Senator Warnock's total vote count during the general election. *See* November 8, 2022 General/Special Election, Ga. Sec. of State (Nov. 19, 2022). And not a single one of them is Republican-leaning.

"has often stayed lower federal court injunctions that contravened that principle." *Id.* at 880 (collecting cases). This Court should do the same with the superior court's injunction.

Intervenors now apply to this Court to resolve this matter. The superior court entered its order late last Friday afternoon. On Monday morning, Intervenors filed an Emergency Motion for Stay in the court of appeals under Ga. Ct. App. R. 40(b). The court of appeals denied the motion, without elaboration, around the close of business Monday and failed to enter a briefing schedule. Intervenors ask this Court to issue a writ of certiorari to review the court of appeals' denial of the motion for emergency stay and request that this Court stay the superior court's order granting declaratory and injunctive relief pending disposition of this petition. Final resolution of this legal issue is a matter of "great concern, gravity, or importance to the public" regarding the rules that will govern this and future runoff elections in Georgia. Ga. S.Ct. R. 40.

Jurisdiction

This Court has jurisdiction over this petition pursuant to O.C.G.A. § 5-6-34(a)(1) (final judgments); *id.* (a)(4) ("orders ... refusing applications ... for interlocutory or final injunctions"); *id.* (a)(7) (applications refusing extraordinary remedies). This Court reviews both the judgment and "all ... orders rendered in the case which are raised on appeal and which may affect the proceedings below ... without regard to the appealability of the ... order standing alone and without regard to whether the ... order appealed from was final or was appealable by some other express provision of law." O.C.G.A. § 5-6-34(d).

The superior court entered final judgment on November 18th. The court of appeals refused an application for interlocutory or final injunction on November 21st.[2] This petition is properly before this Court.

[2]A copy of the Court of Appeals' order and Intervenors' notice of appeal are attached as Exhibits G and H. For the Court's reference, the notice of appeal to the Fulton County Superior Court is attached as Exhibit I.

Factual and Procedural Background

Georgia's December 6, 2022, runoff election is a "continuation" of the November 8th general election. O.C.G.A. § 21-2-501(a)(5). The runoff is overseen and administered by the Secretary of State ("Secretary"), Ga. Const. art. V, § III, ¶ I; O.C.G.A. § 21-2-50, and the State Election Board ("SEB"), O.C.G.A. § 21-2-31. The General Assembly enacted a detailed framework that mandates advance voting on some days, permits it on other days, and forbids it on a few days. Advance voting "shall" begin "no later than the second Monday immediately prior to such runoff." O.C.G.A. § 21-2-385(d)(1)(B).[3] For this runoff, mandatory advance voting begins on Monday, November 28, and concludes Friday, December 2. *See id.*

At issue here is the prohibitory language in § 21-2-385(d)(1). Advance voting "shall not be held" on the second Saturday before the election "if such second Saturday follows a public and legal holiday occurring on the Thursday or Friday immediately preceding such second Saturday." *Id.* This year's second Saturday qualifies, as both Thanksgiving Day and a state holiday on Friday, November 25 "immediately preced[e]" the second Saturday.

The statute allows counties to begin advance voting "[a]s soon as possible prior to a runoff ...." O.C.G.A. § 21-2-385(d)(1)(B). In advance of those holidays, county officials and the Secretary are scrambling to complete multiple statutory requirements before conducting advance voting, including voting machine testing, O.C.G.A. §§ 21-2-374(b), 379.6(c), precertification tabulation audits, *id.* § 21-2-498, and certification of the general election, *id.* § 21-2-499. Those requirements were ongoing at the time the superior court entered its order.

Notably, the law requires counties to provide "reasonable notice" to voters "no later than seven days" before advance voting begins regarding "times, dates, and locations." *See* § 21-2-385(d)(2)-(3). To help counties comply with the requirements, the Secretary circulated the Bulletin to county election officials on November 12, 2022. The Bulletin notified election officials

[3]For the Court's convenience, O.C.G.A. § 21-2-385(d)(1) is attached as Exhibit A.

that advance voting must be held November 28 through December 2 and that advance voting may begin before November 28, but "cannot occur" on public holidays or on Saturday, November 26 because "OCGA 21-2-385(d)(1) ... states that if the second Saturday before the runoff follows a Thursday or Friday that is a state holiday, voting on that Saturday is not allowed."

Relying on the Secretary's direction, 159 counties prepared and staffed advance voting in the runoff. Despite unanimity among counties that advance voting would not occur on November 26, Plaintiffs asked the superior court to permit advance voting on that Saturday.[4] The court granted Plaintiffs' request on the afternoon before the counties had a statutory deadline to provide notice of advance voting on November 26 under O.C.G.A. § 21-2-385(d)(3). Intervenors seek to uphold Georgia law and stop an uneven impact on Georgia's voters by this erroneous ruling. Intervenors request an expedited ruling on this time-sensitive petition and ask that the Court stay the superior court's order while this time-sensitive petition is considered.

Enumeration of Errors

For purposes of Intervenors' request for a writ of certiorari, Intervenors provide the following enumeration of errors:

Under the plain meaning of Georgia's election laws, runoff elections are a continuation of the general election and advance voting is prohibited on the "second Saturday" before a runoff, when that Saturday "follows a public and legal holiday occurring on the Thursday or Friday immediately preceding." O.C.G.A. § 21-2-385(d)(1). Did the court of appeals err in refusing to stay the superior court's declaration that O.C.G.A. § 21-2-385(d)(1) permits voting on Saturday, November 26th, immediately after the Thanksgiving holiday on Thursday and the state holiday on Friday and injunction prohibiting the State from enforcing Georgia's election laws as written?

[4] In advance of the TRO hearing, Plaintiffs informed the court that at least four Democratic-leaning counties were willing to hold advance voting on that Saturday (i.e., Fulton, DeKalb, Cobb, and Muscogee) if the court granted an injunction. *See e.g.*, Ex. D, Sparks Aff. ¶¶ 4-7.

Legal Standard

This Court will grant a writ of certiorari "in cases of great concern, gravity, or importance to the public." Ga. S.Ct. R. 40.

Argument

Intervenors' request for certiorari turns on the court of appeals' failure to stay the superior court's contorted interpretation of O.C.G.A. § 21-2-385(d)(1), disrupting the relevant statute and, more broadly, the General Assembly's rules in place to help the State administer the runoff election. This case presents issues of "great concern, gravity, or importance to the public," which would justify granting a writ of certiorari. Time is of the essence; emergency relief should be granted before some (but not most) counties commence impermissible advance voting on November 26.

The Superior Court's Order denying the motion for an emergency stay was erroneous.

The court of appeals erroneously denied Intervenors' motion to stay the superior court's order misinterpreting O.C.G.A. § 21-2-385(d)(1). Emergency relief from that order was and is necessary to protect Georgia's interest in enforcing its laws as written and to protect the majority of Georgia's citizens whose counties will not have voting access on November 26, given the short notice from the court's order. The Secretary's interpretation of O.C.G.A. § 21-2-385(d)(1) is correct on the merits, and the balance of harms and public interest strongly favor preserving Georgia election law. Because the interests of the Intervenors, the State, and the public "weigh strongly in favor of a stay ... pending appeal," *Green Bull*, 301 Ga. at 473, Intervenors needed only to show a "substantial case on the merits," not a likelihood of prevailing, to the court of appeals. *Id.* But the court of appeals erred in denying interlocutory relief, allowing the superior court's misinterpretation of O.C.G.A. § 21-2-385(d)(1) to persist.

The superior court's misinterpretation of O.C.G.A. § 21-2-385(d)(1) turns on its findings that (1) "primary or election" does not include the term

runoff, (2) runoffs are not continuations of an election (contrary to Georgia law), and (3) the shortened time period prior to a runoff requires Saturday voting to allow counties to start advance voting "[a]s soon as possible." The key differences between its interpretation and the statutory text concern: (1) whether "primary or election" includes runoff elections; (2) the appropriate time period for advance voting; and (3) whether advance voting can be permissive, especially on Saturdays, when not expressly provided in the statute.

The superior court gave no deference to the Secretary, despite acknowledging an "absence of settled law on this specific issue." This runs afoul of the principle "that courts should presume public officials ... acted in accordance with their statutory duties and read the statute in a manner that renders their conduct proper." *See Gundy v. Balli*, 362 Ga. App. 304, 311 (2022); *see also Selph v. Williams*, 284 Ga. 349, 352 (2008) ("[A] presumption of regularity ... requires the courts to presume that public officers have properly discharged their official duties"); *see also* O.C.G.A. § 21-2-50(b) (the Secretary is the "state's chief election official"). That interpretation was erroneous, and the court of appeals erred in acquiescing to it.

a. The Secretary's interpretation of the statute is correct.

The Secretary's reading of O.C.G.A. § 21-2-385(d)(1) accords with principles of statutory construction: advance voting on Saturday, November 26, is not allowed because it follows Thanksgiving and another state holiday.

Statutory interpretation starts with the text, applying its "plain and ordinary meaning" when read in the "most natural and ordinary way, as an ordinary speaker of the English language would." *Deal v. Coleman*, 294 Ga. 170, 172–73 (2013). This includes applying the rules of grammar. *Id.* at 173. A statute should not be read in isolation, but rather "in the context of the other statutory provisions of which it is a part." *Hendry v. Hendry*, 292 Ga. 1, 3 (2012). Indeed, "[i]t is a basic rule of construction that a statute ... should be construed to make all its parts harmonize and to give a sensible and

intelligent effect to each part[.]" *McIver v. State*, 314 Ga. 109, 119 (2022). Finally, statutes addressing the same subject matter are construed together. *Ultra Telecom, Inc. v. State*, 288 Ga. 65, 67 (2010).

Applying these principles, the Court must first look at the Election Code generally to determine if "primary or election" can encompass a runoff election. Georgia statute provides that "'[e]lection' ordinarily means any general or special election and shall not include a primary or special primary unless the context in which the term is used clearly requires that a primary or special primary is included." O.C.G.A. § 21-2-2(5). The definition's drafters expressly excluded primaries but not runoffs, which are a natural "continuation of the ... election." *See* O.C.G.A. § 21-2-501(a)(5).

Case law supports the Secretary's conclusion that "election" includes a runoff election. Numerous Georgia Supreme Court decisions use the terms "election," "runoff election," and "runoff" interchangeably when discussing a single election. *See, e.g.*, *Fuller v. Thomas*, 284 Ga. 397 (2008) (referring to contested run-off election as "election," "runoff," and "runoff election"); *Spalding Cnty. Bd. of Elections v. McCord*, 287 Ga. 835 (2010) (same); *Meade v. Williamson*, 293 Ga. 142 (2013) (same). That usage informs the statutory meaning. *See Hasty v. Castleberry*, 293 Ga. 727, 731 (2013) (statutes are "construed in connection and in harmony with the existing law, and as a part of a general and uniform system of jurisprudence").

b. Plaintiffs' interpretation, adopted in the Order, is incorrect.

The block paragraph beginning "and shall end on the Friday..." is known as flush language. *See Sherwin-Williams Co. Emp. Health Plan Tr. v. Comm'r*, 330 F.3d 449, 454 (6th Cir. 2003). That flush language applies both to general elections (paragraph A) and to runoff elections (paragraph B) because it is set apart from the rest of the statute.

This case presents important issues worthy of certiorari.

Because this case has been fully briefed below and since time is of the essence, this Court can dispose of the superior court's order summarily

without further briefing or oral argument. *See Mobuary v. State*, 312 Ga. 337, 337 n.1 (2021).

Conclusion

The court of appeals' denial of the Intervenors' motion for emergency stay allows the superior court's interpretation of O.C.G.A. § 21-2-385(d)(1) to gut the statute, sow utter chaos, and unevenly impact Georgia voters' access to advance voting. This Court should grant a writ of certiorari to decide the merits of the court of appeals' erroneous order, permitting final resolution before advance voting occurs on Saturday, November 26th in defiance of Georgia's election laws as written. For the same reasons that the court of appeals erred in denying the stay, Intervenors request that this Court stay the superior court's order pending disposition of this petition.

This submission does not exceed the word-count limit imposed by Rule 20.

November 22, 2022

Respectfully submitted,

/s/ Mark D. Johnson
MARK D. JOHNSON
Georgia Bar No. 395041
Gilbert Harrell Sumerford & Martin, P.C.
777 Gloucester St., Suite 200, Brunswick, GA
31520
Telephone: (912) 265-6700
mjohnson@ghsmlaw.com

Certificate of Service

I, Mark D. Johnson, do hereby certify that on the 22nd day of November, 2022, a true and correct copy of the foregoing Georgia Republican Party, Inc., National Republican Senatorial Committee and Republican National Committee's Emergency Petition for Writ of Certiorari Requesting Stay of the Superior Court's Declaratory and Injunctive Relief was served via electronic mail addressed to:

Joyce Gist Lewis
Adam M. Sparks
KREVOLIN & HORST, LLC
One Atlantic Center, 1201 W. Peachtree St., NW, Ste. 3250, Atlanta, GA 30309
jlewis@khlawfirm.com
sparks@khlawfirm.com
Attorneys for Defendant

Christopher Carr
Bryan K. Webb
Office of the Georgia Attorney General
40 Capitol Square, Atlanta, Georgia 30334
cmcgowan@law.ga.gov

Uzoma N. Nkwonta
Christopher D. Dodge
ELIAS LAW GROUP LLP
10 G Street, NE, Suite 600, Washington, DC 20002
cdodge@elias.law
Counsel for Plaintiffs

I certify that there is a prior agreement with Plaintiffs and the State to allow documents in a PDF format sent via email to suffice for service.

/s/ Mark D. Johnson
MARK D. JOHNSON